

Holt in *Groenvelt's case*, and attributed to the desire of Lord Coke to support a graduate of Cambridge, and to prevent what he considered an affront of the university, which must be venerated.

The plaintiff's counsel, in shewing cause against this rule, relied mainly on objections in relation either to the hearing, or the warrant, or the prison: and we proceed to advert to each of them in their order.

In respect of the hearing, it appeared that the plaintiff stated what she chose in answer to inquiries concerning the charge; that the vice-chancellor received information from the proctors without oath; and that the persons to whom the plaintiff referred were not sent for. As to the inquiries addressed to the plaintiff, they seem to us to be reasonable, in order to give her an opportunity of answering or explaining the facts. After [553] hearing her answers, the vice-chancellor might with reason be satisfied that the facts existed on which the proctors acted, and was justified in adjudicating thereon. As to receiving information not upon oath, there is no express provision in the charter enabling the vice-chancellor to administer an oath; and the cases shew that it was not for this purpose essential to do so. In *Dr. Groenvelt's case*, the objection was made: but Lord Holt was clear that the omission to hear evidence upon oath would not make the defendant liable in trespass: 1 Lord Raym. 472. In *Basten v. Carew*, 3 B. & C. 653, 5 D. & R. 558, the objection was made that the magistrates, acting judicially, must proceed on evidence given under the sanction of an oath: but the court decided against it, and held that, where the statute creating the jurisdiction did not direct the justices to make inquiry upon oath, the court could not require it to be done. In that case, the statute related to vacant possession, to be ascertained in great measure by personal inspection, and so within the knowledge of the justices. The jurisdiction here in question relates to matters supposed to come within the observation of the officers of the university, upon a search properly made by them, and also supposed to require a summary interference on their part. Unless the legislature had expressly declared it, we should not presume an intention to make evidence upon oath essential for this purpose. With respect to the objection that the defendant did not send to the persons referred to by the plaintiff for her character, he was not under any legal obligation so to do; it was a matter for his own discretion; and, if he acted therein according to the best of his judgment, as it was admitted that he did, his omission to make this inquiry was no ground for maintaining trespass. We must add that it would in our opinion be most inconvenient and objectionable that the validity of judicial proceedings should depend on the opinion of a jury whether there had been a sufficient hearing of the parties: and, indeed, as we have already observed (ante, p. 548), the question whether there has been such a hearing, must, in the case of a court of record, be decided conclusively by the record itself.

With respect to the warrant, it was proved that a writing was made when the plaintiff was committed: but that writing was not produced by the defendant when called for, after notice to produce: and we assume that it was void as a warrant. We have before observed that, in *Hamond v. Howell*, 2 Mod. 218, the warrant was void on the face of it: so it was in *Groenvelt v. Burwell*: for, in each case, the prisoner had been discharged by habeas corpus: nevertheless, the action did not lie in either: therefore, if a void warrant is the same as no warrant, the absence of a warrant would not sustain the action. We would further observe that all judges of record have power to commit to the custody of their officer, *sedente curia*, by oral command, without any warrant made at the time.* This proceeds upon the ground that there is, in contemplation of law, a record of such commitment, which record may be drawn up when necessary: *Throgmorton v. Allen*, 2 Roll. Abr. Trespass, C., 558; and see the judgment of Parke, B., in *Watson v. Bodell*, 14 M. & W. 70. Indeed, for a like reason, no warrant is required for the execution of a sentence of death: 2 Hale's P. C. c. 57, p. 409. The rule thus established seems peculiarly applicable to the case of a committal to the gaol peculiarly appropriated to the court, as is the present case. A warrant seems no more necessary or useful, under those circumstances, than would a written authority be from the keeper of the gaol to the warder who locks up the cell. Therefore, upon this ground also, the defendant is entitled to succeed, [555] the vice-chancellor being a judge of record. Again, it has been held that a prisoner is in lawful custody, although committed to a prison for the purpose of being again brought up for re-hearing, without

* See *Ex parte Fernandez*, ante, p. 3, and the authorities there referred to.